

25STCV25143 25STCV25143

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-14

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Case Number: 25STCV25143 Hearing Date: August 14, 2026 Dept: 512

HEARING DATE: Fri., August 14, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Windsor

v. Volunteers of America LA COMP.

FILED: 08-26-25

CASE NUMBER: 25STCV25143

NOTICE:

NO

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Eric D. Tims of Lavi & Ebrahimian, LLP for Plaintiff Whisper N.

Windsor

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Eric D. Tims of Lavi

& Ebrahimian, LLP's Motion

to be Relieved as Counsel for Plaintiff Whisper N. Windsor is CONTINUED to

Monday, September 14, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve proper proof of service of the Motion and notice of hearing on the parties.

Counsel must also resubmit the MC-53 Form with the Court providing all the accurate dates and future dates.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☐

Proof of Service Timely Filed (CRC, rule 3.1300) NO

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of August 11, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 11, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On August 26, 2025, Plaintiff Whisper N. Windsor ("Plaintiff") filed the instant PAGA action against Defendant Volunteers of America Los Angeles ("Defendant") and Does 1-100.

On December 10, 2025, Defendant filed
an Answer.

On July 20,
2026, Counsel Eric D.

Tims of Lavi & Ebrahimian, LLP ("Counsel") filed the instant Motion to be
Relieved as Counsel for Plaintiff (the "Motion").

No Opposition to
the Motion has been filed.

II.

Procedural
Issues

As an initial matter, the Court finds
the Motion was untimely filed and served. The Motion was served by mail on
Plaintiff and email on Defendant on July 20, 2026. The service by mail on
Plaintiff occurred less than 16 court days and five calendar days prior to the
instant hearing. (Code Civ. Proc., § 1005.) As such, the Motion was
untimely filed and served on Plaintiff.

The Court may
not rule on the Motion absent proper service and notice of hearing.

Additionally,
the Court notes that the MC-053
form entitled "Order Granting Attorney's Motion to Be Relieved as
Counsel-Civil" does not include all accurate dates and future dates.

Counsel must resubmit the MC-53 Form
with the Court providing all the accurate dates and future dates.

III.

Conclusion
& Order

Counsel Eric D. Tims of Lavi
& Ebrahimian, LLP's Motion

to be Relieved as Counsel for Plaintiff Whisper N. Windsor is CONTINUED to Monday, September 14, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve proper proof of service of the Motion and notice of hearing on the parties.

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Plaintiff's Counsel is ordered to give notice.